

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL
FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL
APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE
ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-
NEVER-OCCURRED**

Never-Filed Revised Counterfactual Opinion After Rehearing

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** July 13, 2026

Judge Vale delivers the unanimous revised opinion of the fictional panel, joined by Judges Quill and Reed. Panel rehearing was granted to clarify how the corrected record supports functional exemption categories, final segregation decisions, and passage-specific judicial access. The parties supplied equal-page public and controlled joint briefs.

After renewed review, we again affirm all four corrected rulings and order no remand. The operational 7(E) holding reaches only supported implementation and guideline relations. The limited 7(F) holding rests on segment, function, and expected-harm correlations. The affirmative line review accounts for every meaningful portion. The access ruling rests on independent passage findings before any verification mechanism is used.

This opinion replaces the May 29 disposition vacated when panel rehearing was granted. It does not change the corrected premise or create history on the actual appeal. All records, labels, actors, systems, and events are fictional.

I. Rehearing Posture and Vacatur

Open Grid sought panel and en banc rehearing from the first full-affirmance decision. Its petition accepted many of the stated legal limits but questioned whether the opinion adequately described the judicial step between a worksheet category and a conclusion about a disputed segment. DOE answered at our direction.

On June 22, the panel granted rehearing. Fourth Circuit Internal Operating Procedure 40.2 consequently vacated the former opinion and judgment within this branch and returned the appeal to Judges Vale, Quill, and Reed. The en banc request became moot without prejudice. A separate order withheld mandate.

We then requested a joint presentation addressing functional specificity under 7(E) and 7(F), proof of complete segregation after the supplemental release, and the relation between substantive access findings and controls on viewing sealed counterparts. The parties filed their public and controlled forms on July 2.

Granting rehearing did not imply a changed result. It allowed a more explicit account of the corrected evidence. We decide the appeal anew on that bounded premise and do not rely on the vacated disposition as authority.

II. Jurisdiction and Branch Isolation

The district court entered final judgment for DOE on January 2, 2026. Open Grid filed its notice of appeal on February 2. That single district judgment provides jurisdiction under 28 U.S.C. § 1291 over the FOIA merits and reviewable judicial-access rulings.

The February 10 isolation notice does not imagine a second judgment. It directs this branch to assume a stronger account of 7(F), a completed contextual segregation review, and document- and passage-specific sealing findings. It leaves the operational 7(E) showing, search history, inventory, and district finality facts fixed.

No document from the actual appellate course supplies a premise here. Conversely, neither this opinion nor any procedural step associated with it may be entered, cited as history, or used to calculate a deadline on the actual docket. Mutually exclusive denial and mandate-stay branches also remain outside this rehearing path.

The premise states assumed facts; it does not command legal conclusions. We independently apply FOIA and public-access law. Jurisdiction therefore rests on the real-to-the-exercise district judgment, while our full affirmance follows from the corrected evidence considered under ordinary standards.

III. Request, Scope, and Search

Nila Quen requested approved and superseded Grid Sentinel Operational Decision Trees, Cyber-Incident Escalation Matrices, and Response-Coordination Appendices, together with final approval or supersession instruments. Written clarification fixed the effective period as January 1, 2022 through May 31, 2024.

The agreed scope excludes drafts, routine correspondence, event logs, telemetry, configurations, code, credentials, access information, genuine infrastructure diagrams, and personal contact fields. It includes approved exercise and quality-review editions and uses one authoritative copy where identical content recurs.

DOE searched the fictional Beacon, Driftglass, and Harborline repositories. It reduced 16,842 raw hits to 1,284 deduplicated candidates. Custodians examined forty-six items and identified twelve responsive records containing 200 source pages.

Open Grid does not challenge search adequacy on rehearing. No omitted location, custodian, or term is alleged, and the supplemental examination found no new responsive record. The issues are legal treatment of identified material, segregation within it, and public access to controlled judicial presentations. Nothing in those issues calls for a real system detail or operational instruction.

IV. Record Families and Initial Production

Four decision-tree records contain sixty pages: GS-DT-4.2 has eighteen, GS-DT-3.7 sixteen, GS-DT-T1 fourteen, and GS-DT-QA twelve. Three matrices contain fifty-four pages: GS-EM-4.2 has twenty, GS-EM-3.7 eighteen, and GS-EM-T1 sixteen.

The three coordination appendices contain sixty-four pages: GS-CA-4.2 has twenty-four, GS-CA-3.7 twenty-two, and GS-CA-T1 eighteen. Two governance instruments complete the collection: GS-GV-04 has twelve pages and GS-GV-03 ten.

DOE withheld GS-DT-4.2, GS-DT-3.7, and GS-EM-4.2 in full, totaling fifty-four pages. Seven records and all 124 of their pages were produced with redactions. Both governance records and their twenty-two pages were released completely. The agency therefore delivered 146 images.

Of those images, sixty-eight had no blackout and seventy-eight had at least one. Sixty-two redacted images cited 7(E), fifty-one cited 7(F), and thirty-five cited both. Every fully withheld page invoked 7(E), while thirty-nine also invoked 7(F). These figures describe accounting, not proof of an exemption.

V. Supplemental Review and Rehearing Questions

The later review reused preserved material and changed no source total. It disclosed seventeen passages on eleven existing production images: two passages on each of six images and one passage on each of five. The replacements did not become additional responsive pages.

Newly visible material concerned ownership, neutral captions, approvals, revision context, archival direction, recordkeeping, general coordination, and closure administration. The corrected worksheet then explained the treatment of every residual segment and proposed fragment, including administration considered within the three fully withheld records.

On rehearing, Open Grid argues that the opinion must show how a court tested the functional classification rather than infer correctness from a filled row. DOE agrees with that legal proposition and says the segment descriptions, contextual comparisons, declarant foundations, and harm explanations perform the test.

The parties likewise agree that access controls cannot justify sealing. Their disagreement concerns whether the assumed findings are sufficiently particular before those controls operate. We address each issue separately and explain why the corrected evidence supports the same four-target affirmance.

VI. Standards of Review and Agency Proof

We review application of FOIA exemptions de novo, with the burden on the agency. A sufficiently detailed declaration or functional index may support summary judgment when grounded in personal knowledge, internally coherent, and not contradicted by evidence of bad faith.

Rein v. United States Patent and Trademark Office requires descriptions adequate for adversarial challenge and meaningful judicial evaluation. *Zaid v. Department of Justice* permits coherent functional categories but does not allow a broad label to replace document-level examination or the elements of an exemption.

Segregability remains an affirmative obligation after a segment fits an exemption. The agency must release a meaningful nonexempt portion when it can be separated and must establish that it actually performed the inquiry. Production volume alone does not carry that burden.

We independently review the legal basis for restricting judicial records. The applicable access interest, notice, alternatives, findings, scope, and duration must be considered apart from the agency's FOIA position. A technical mechanism can enforce a valid order, but it cannot create the interest necessary to support closure.

VII. Qualifying Law-Enforcement Purpose

Exemption 7 applies only to records compiled for law-enforcement purposes. The corrected record describes Grid Sentinel's approved exercise playbooks as frameworks supporting prevention of and coordinated response to fictional unlawful attacks against critical infrastructure. Custodian testimony connects their compilation to that protective purpose.

The distinction between operational playbooks and governance records supports the account. DOE fully released GS-GV-04 and GS-GV-03 because those instruments record approval and supersession rather than organize the response framework. Administrative sentences inside a playbook do not lose their character, but their presence does not alter the purpose for which the whole record was compiled.

Open Grid accepts the threshold in this branch. The principle described in *Public Employees for Environmental Responsibility v. United States Section, International Boundary & Water Commission* also supports treating emergency-response material tied to unlawful threats as qualifying, while still demanding proof for the information withheld.

We therefore find the compilation requirement met. That conclusion proves neither 7(E) nor 7(F). Each retained segment must satisfy the distinct requirements discussed below, and ordinary administration remains subject to segregation.

VIII. Exemption 7(E) Framework

Section 552(b)(7)(E) protects qualifying techniques and procedures. It also protects guidelines when disclosure could reasonably be expected to risk circumvention of law. Under *Grey v. Alfonso-Royals*, the circumvention phrase applies to guidelines, while nonpublic implementation details of a technique or procedure may be protected even if the general concept is known.

Function supplies the boundary. A document title, owner, effective date, or routine archival instruction is not a technique by association. DOE must identify the decision or implementation relation and describe it safely enough for testing. A guideline entry additionally needs a logical circumvention prediction connected to the authentic field.

Public materials use [REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], and [REDACTED—FICTIONAL ESCALATION VALUE] to mark types without revealing contents. Controlled labels are arbitrary and do not establish a statutory element.

Position can matter when it communicates the protected relationship. But proximity alone is insufficient. The reviewing court must determine whether the surrounding context exposes implementation or instead conveys an independently meaningful administrative proposition.

IX. Application of 7(E)

The corrected worksheet identifies decision-tree segments in which an authentic predicate connects to relative response ordering or a branch relation. It states how those connections implement the approved framework and correlates each retention to its source location. That is more specific than invoking the operational title.

For guideline material, DOE separately explains why disclosure of an authentic classification relation could allow anticipation of an internal change and create a reasonable circumvention risk. It does not apply that prediction indiscriminately to techniques and procedures.

We tested contested contexts against visible administration and the paired structural samples. Owners, neutral headings, approval status, revision accounts, and closure text were disclosed when their meaning survived. Within the completely withheld records, the worksheet identifies why certain proposed fragments reveal the relation through placement or carry no useful information after supported deletion.

We also apply 5 U.S.C. § 552(a)(8)(A)'s foreseeable-harm requirement separately. The unchanged evidence connects disclosure of the authentic implementation relations to foreseeable reconstruction and anticipation of the fictional framework and, for supported guidelines, to circumvention harm. That explanation does not extend protection to neutral administration.

We therefore sustain 7(E) only for the stated implementation and guideline targets.

[REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], and [REDACTED—FICTIONAL ESCALATION VALUE] are not talismans; the evidence about the corresponding authentic function supplies the basis. General administration remains outside the holding.

X. Functional Specificity and Judicial Verification

A safe Vaughn account must permit scrutiny without reproducing protected content. Here, each residual entry identifies the record, source page, segment, asserted function, exemption, any overlap, and expected harm. The processing officer and custodian explain how those judgments were made.

We did not confirm the entries merely because all fields were completed. We compared their descriptions with visible context, reconciled them with the primary and supplemental indexes, considered the released examples, and used controlled structural placement only as an aid. The inert presentation supplied no presumption of correctness.

Representative reasoning is appropriate where segments genuinely share a function and causal account. We separately tested close administrative settings: a caption that names a document subject without implementing it, a distribution statement that does not reveal a protected channel, and a revision note near a relation. The corrected worksheet releases such text when it stands alone.

This process satisfies *Rein* and *Zaid*. It demonstrates the judicial step Open Grid requested on rehearing: verified correlation comes from evidence about what a segment does, not from the agency's choice of category name.

XI. Exemption 7(F) Framework

Section 552(b)(7)(F) applies when disclosure of qualifying law-enforcement information could reasonably be expected to endanger an individual's life or physical safety. The agency need not name the endangered person, but it must provide a logical connection between the information and expected danger to someone.

Electronic Privacy Information Center v. Department of Homeland Security recognizes the protective reach of the exemption while preserving the separate duty to release segregable material. Functional grouping can be used only after examination shows that the members share the harm-relevant characteristic.

The corrected premise defines four groups: duty assignment, contact category, safety reference, and human-linked escalation placement. Public markers are [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL CONTACT CHANNEL], [REDACTED—FICTIONAL SAFETY REFERENCE], and the limited human use of [REDACTED—FICTIONAL ESCALATION VALUE].

A safety word or adjacent caption is not enough. Each segment must perform the stated function, and a dual-marked entry needs an explanation independent from its 7(E) rationale. We apply those requirements to the corrected correlations rather than to the labels themselves.

XII. Application of the Four 7(F) Groups

The worksheet states that authentic duty information could focus interference on a person carrying out protective work. A genuine contact classification could enable misdirection toward that function. A real safety reference could disclose which human safeguard an interferer would try to disrupt. A human-linked escalation placement could show when protective participation becomes pertinent.

For each retained segment, the account identifies the particular function and selects the matching causal explanation. It excludes an ordinary records custodian, generic distribution language, neutral safety headings, and values without a human-protection relation. Where 7(E) also applies, the entry states both reasons.

We examined the contested correlations highlighted in the supplemental brief. Their contextual descriptions demonstrate the claimed functions rather than merely restating category names. The expected-harm inferences are reasonable without requiring a real individual, route, or operational detail.

Accordingly, we sustain only the four bounded 7(F) groups on the corrected evidence. The ruling does not extend to every field in a protective program, every occurrence of related vocabulary, or any segment that lacks the documented disclosure-to-danger path.

XIII. Segregability Standard and Method

FOIA requires release of a reasonably segregable nonexempt portion after exempt material is removed. The agency must show a process directed to meaning, context, and actual residual text. It need not release disconnected words that convey nothing, and it may protect position when position itself reveals an exempt relationship.

The corrected protocol asks whether a visible proposition has standalone administrative value, whether location communicates a relation, whether a heading survives deletion of subordinate matter, and whether general coordination can be detached from a human-function segment. Reviewers record both the answer and its reason.

The method reaches titles, ownership, effective dates, approval statements, revisions, quality-review text, archival directions, general coordination, recordkeeping, and closure. It also reaches candidate portions of the three records originally withheld as a whole.

We agree with Open Grid that an adequate method is not self-executing proof. We therefore consider its results, the subjects actually disclosed, and explanations for plausible remaining administration. This separate inquiry prevents an exemption determination from absorbing the statutory segregation duty.

XIV. The Seventeen-Passage Release

The renewed review disclosed seventeen passages on eleven already-produced images. Six images received two passages each; five received one. Decision materials supplied six passages across four images, an exercise matrix supplied three across two, the current appendix supplied five across three, and the earlier appendix supplied three across two.

The newly visible passages include record ownership, neutral headings, approval status, revision history, archive instructions, general coordination, recordkeeping, and closure administration. Their release shows that reviewers did not treat presence inside an operational playbook as dispositive.

The accounting remains exact. Replacing an image changes what is visible on an existing production page; it does not add a responsive record or source page. The source collection remains twelve records and 200 pages, and 146 images remains the original production count.

We do not infer completeness simply from seventeen releases. Their significance lies in the accompanying reasons: the worksheet identifies why those propositions stand independently and then applies the same contextual tests to what remains. That evidence is relevant to, but not a substitute for, the residual analysis.

XV. Residual Segregability Findings

For every retained segment, the corrected account states whether the text expresses an exempt relation, whether its placement would disclose that relation, and whether deletion leaves a meaningful proposition. It separately evaluates the closest administrative candidates identified by Open Grid.

Neutral owner and approval statements are released. Descriptive captions remain public when they identify subject matter without conveying implementation. General distribution and coordination language is disclosed unless it reveals the protected human-function association. Revision and closure text remains visible when it can be read independently.

Within GS-DT-4.2, GS-DT-3.7, and GS-EM-4.2, reviewers considered covers, version blocks, headings, and administrative notes. The supported residual decisions identify relational placement or lack of informational value; they do not rely on a declaration that the record is operational throughout.

Having examined those explanations, we find no meaningful nonexempt portion left unaddressed. DOE has established completion of the affirmative duty on the corrected premise. We affirm segregability without directing another search, additional production, or remand.

XVI. Public Access to Judicial Materials

The controlled briefs and evidentiary counterparts are judicial records used to decide dispositive questions. Their connection to information withheld under FOIA does not automatically justify closure. The court must identify the applicable access right, provide notice, consider alternatives, and make findings sufficient to support the selected restriction.

Under *Company Doe v. Public Citizen*, generalized sensitivity cannot replace narrow tailoring. Where First Amendment access applies, the interest and scope must satisfy the more demanding standard. A redacted counterpart helps preserve public understanding but does not independently establish necessity.

The corrected order identifies each controlled passage, the authentic relation it represents, and why exposure of that relation would defeat the supported operational or human-safety interest. It assesses line redaction, narrative description, limited exhibits, delayed release, and unsealing. Public counterparts retain history, authorities, arguments, and requested relief.

The restrictions end thirty days after mandate unless new findings support continued closure for a particular passage. That finite term, open notice, and item-specific reasoning distinguish this premise from aggregate or indefinite sealing.

XVII. Application and Access Enforcement

We independently reviewed the corrected passage findings and find them adequate. They distinguish evidentiary samples from advocacy, identify necessary relational context, and avoid closing an entire filing merely because one protected type appears within it. The public version remains the ordinary projection.

Only after those findings operate do the access controls matter. Eligibility in the certificate is not permission. A user needs a disclosure-specific session event tied to the exact resolved pack closure. Before every authorized open, the system verifies expected content-addressed path, byte size, digest, readability, and page count and exposes only a leased snapshot.

Revocation removes the sealed row and restores the public-only result. A grant for one pair cannot reveal another, and verification failure exposes neither bytes nor fallback metadata. The court-ordered supplemental pair is covered conditionally by the earlier motion and certificate, yet still requires its own grant.

These mechanics faithfully enforce, rather than substitute for, passage-specific legal judgments. We affirm the corrected sealing ruling because its reasons, alternatives, scope, public counterparts, and duration are sufficient before any mechanism is considered.

XVIII. Four-Target Disposition

First, DOE has shown that the defined decision-tree predicates, ordering, implementation relations, and supported guidelines fall within 7(E). The ruling expressly excludes independent administration. Second, the segment-linked causal account establishes the limited duty, contact, safety-reference, and human-escalation functions under 7(F).

Third, the page-linked protocol, actual supplemental disclosures, and residual explanations establish release of every meaningful nonexempt portion. The seventeen passages are evidence of discriminating review, while the recorded final decisions establish completion. Fourth, the corrected access ruling supplies independent passage findings, public alternatives, bounded grants, revocation, and finite duration.

Open Grid's rehearing submission improved the public explanation but identifies no unsupported segment within the facts we are directed to assume. DOE's requested full affirmance therefore remains appropriate. We deny any request for remand, additional search, or immediate disclosure.

These holdings remain separate. A qualifying purpose proves no exemption; one exemption does not prove another; exemption does not establish segregation; and a FOIA determination does not by itself close a judicial record.

XIX. Judgment and Mandate Timing

The fictional district judgment is AFFIRMED on all four corrected targets. A revised judgment will be entered today. The May 29 opinion and judgment remain vacated and are superseded; they do not coexist as operative dispositions in this rehearing fork.

Because DOE is a United States agency, Rule 40(d)(1) otherwise provides forty-five days for a rehearing petition. Exercising the authority stated in that rule, the Court expressly shortens the filing time from this revised judgment to fourteen days, ending July 27, 2026. The parties received focused rehearing and joint supplemental briefing before this disposition.

Under Rule 41(b), the Court correspondingly directs that mandate issue seven days after the shortened rehearing period, on August 3, 2026, unless a timely petition or later order changes the date. The rehearing-stage mandate stay continues until issuance or further order.

Entered July 13, 2026 by Judges Vale, Quill, and Reed. The opinion is confined to the isolated never-filed docket, reveals no genuine controlled value, and has no legal or historical effect on the actual appeal.